

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)**

Present:

Mr. Justice Md. Shohrwardi

Criminal Appeal No. 11065 of 2018

Md. Shahjahan Ali Molla
..... appellant

-Versus-

The State and another
..... Respondent

Mr. Mahammad Bakir Uddin Bhuiyan, Advocate with
Mr. Abu Hanif, Advocate
... ..for the appellant

Mr. S.M. Golam Mostofa Tara, DAG with
M/s. Shama Akhter, AAG with
Mr. Md. Shaifour Rahman Saif, AAG
... For the State

Mr ASM Kamal Amroohi Chowdhury, Advocate
..... For the respondent No.2(ACC)

**Heard on 07.05.2023, 15.05.2023, 24.05.2023,
30.05.2023, 31.05.2023, 08.06.2023, 11.06.2023 and
13.06.2023**

Judgment delivered on 18.06.2023

This appeal under section 10(1)(a) of the Criminal Law Amendment Act, 1958 has been preferred challenging the legality of the impugned judgment and order of conviction and sentence dated 11.10.2018 passed by Special Judge, Jashore in Special Case No. 02 of 2011 convicting the appellant under sections 409/109 of the Penal Code, 1860 and sentencing him thereunder to suffer rigorous imprisonment for 05 (five) years and to pay a fine of Tk. 3,12,20,800 and confiscating the said amount in favour of the state.

The prosecution case in a nutshell is that one Ashraful Islam, Inspector of the Bureau of Anti-Corruption lodged FIR on 29.09.2003 at

12.25 pm alleging, inter alia, that the accused Md. Shahjahan Ali Mollah is the Proprietor of the M/S. Shahjahan Traders and the said firm availed a credit facility from the Agrani Bank, Bazar Branch to import 7000 metric tons of MOP fertilizer from China and opened LC for an amount of Tk. 4,78,94,525 at 30% margin. The bank also sanctioned a pledge (lim) of Tk. 335.27 lac. After import, the MOP fertilizers were stored in the godown under the pledge facility of the bank. As per the stock register dated 30.01.2000, the required stock in the godown was 86,946 bags of MOP fertilizer equivalent to Tk. 3,47,78,400 but the inspection team of the bank on 07.02.2000 at the time of inspection found 54,650 bags of MOP fertilizer equivalent to Tk. 2,18,06,000. As a result, there was a shortfall of 32,296 bags of MOP fertilizer equivalent to Tk. 1,29,18,400 in the godown. Total 32,296 bags of MOP fertilizer were sold by the accused without any delivery order from the bank and also without depositing the sales proceeds of 32,296 bags of MOP fertilizer. Apart from the 30% margin of the said LC, the accused persons in connivance with bank officials and others misappropriated Tk. 90,42,880.

P.W. 13 Syed Ahmed, Deputy Director, Anti-Corruption Commission, Chattogram took up investigation of the case. During investigation, he visited the place of occurrence, seized documents, prepared the seizure list and the Zimmanama(bond), and recorded the statement of witnesses under section 161 of the Code of Criminal Procedure, 1898. After completing the investigation found the prima facie truth of allegation under sections 409/420/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 against the 4 accused persons including the appellant.

After that, the case record was sent to the Senior Special Judge, Jashore and the case was registered as Special Case No. 2 of 2011 and the learned Senior Special Judge was pleased to take cognizance of the offence against the accused persons. During the trial, the charge was framed against the accused persons under sections 409/420/109 read with section 5(2) of the Prevention of Corruption Act, 1947 which was read over and explained to the

accused persons who pleaded not guilty to the charge and claimed to be tried in accordance with law.

During the trial, the prosecution examined 14 witnesses to prove the charge against the accused persons. After examination of the prosecution witnesses, the accused persons were examined under section 342 of the Code of Criminal Procedure, 1898 and they declined to adduce any DW. After concluding the trial, the trial court by impugned judgment and order convicted the accused persons as stated above against which the appellant preferred this appeal.

P.W. 1 Mosharaf Hossain is the Assistant General Manager(retired) of Agrani Bank, Jashore. He stated that on 09.06.2010 he was posted at Agrani Bank, Jashore Branch as Assistant General Manager. On that day Syed Ahmed, Assistant Director, Anti-Corruption Commission seized documents regarding the LC records of MS Shahjahan Traders and handed over the seized documents to the custody of the bank. He proved his signature on the seizure list as exhibit-1/1. He produced the alamats and proved the same as the material exhibit-I series. During cross-examination, he stated that he presented the seized documents as regards MOP fertilizer. He could not say whether any other case was filed relating to MOP fertilizer by the bank authority.

P.W. 2 Akter Hossen is the Manager(retired) of Agrani Bank, Nawapara Branch, Jashore. He stated that on 06.07.2010 while he was discharging his duty as Manager of the said branch, at 3.30 pm Syed Ahmed, Assistant Director, Anti-Corruption Commission seized the documents regarding a loan of the Shahjahan Ali and handed over those documents in the custody of the Bank. He proved his signature on the seizure list as exhibit- 2/1 and his signature on the Zimmanama(bond) as exhibits-3/1. On 07.07.2010 at 10 am Assistant Director Syed Ahmed seized the documents five times and handed over those alamats to his custody. He proved the seizure list as exhibit-4 and his signature as exhibit-4/1. During cross-examination, he stated that the alamats mentioned in the seizure list are not available in Court. The former Manager Anwarul Islam filed a case on

29.06.2006 as regards MOP Potash fertilizer which is now pending as Special Case No. 10 of 2012. Manager Tojammel Haque was accused of that case and he died on 10.02.2016.

P.W. 3 Md. Zahangir Kabir is the Senior Principal Officer of Agrani Bank. He stated that on 09.06.2010 he was posted as a Programmer at Agrani Bank Limited, Jashore Branch. On that day, Syed Ahmed, Assistant Director, Anti-Corruption Commission, Jashore seized the documents as per the presentation of Mosharaf Hossein regarding the M/s. Traders. He proved his signature on the seizure list as exhibit-1/2. During cross-examination, he stated that the travel documents from the Noapara to Port were seized.

P.W. 4 Md. Siddiquir Rahman is the Senior Principal Officer of Agrani Bank, Lohagara Branch, Narail. He stated that on 06.07.2010 he was posted at Agrani Bank, Noapara Branch. On that day at 3.30 pm the Manager Md. Akter Hossain presented the documents relating to M/s. Shahjahan Traders and Syed Ahmed seized those documents. He proved his signature on the seizure list as exhibit-2/2. On 06.07.2010 at 4.30 pm, other documents were also seized by Syed Ahmed. He proved his signature on the photocopy of the seizure list. On 07.07.2010 at 10 am Syed Ahmed again seized documents based on the seizure list. He proved his signature on the seizure list as exhibit-4/2. During cross-examination, he stated that he had no knowledge about the documents seized. The documents seized on 06.06.2010 are not available in Court. The bank is the custodian of the pledge goods which is kept under the control of the guard. He affirmed that the seized documents are not available in Court.

P.W. 5 Md. Elias Uddin is the MPO (former) of Agrani Bank Limited, Zonal Office, Jashore. He stated that on 09.06.2006 at 10.30 am Syed Ahmed, Assistant Director of the Anti-Corruption Commission seized documents from Assistant General Manager Mosharaf Hossain regarding the LC of Ms. Shahjahan Traders as per the presentation of Assistant General Manager of the bank and prepared the seizure list. He proved his signature on the seizure list as exhibit-1/3 and the seized documents were handed over in the custody of Mosharaf Hossain. He proved the Zimmanama(bond) as

exhibit-5 and his signature as exhibit-5/1. During cross-examination, he stated that the documents were seized in his presence. As per the agreement of the CC pledge, the goods were kept in the custody of the bank and the bank also appointed the security guard. After payment of the money, the goods are released from the godown. He is not aware as to whether Petition Case No. 810 of 2016 was filed on 29.06.2006 regarding 32,296 bags of MOP fertilizer. He could not say as to whether Case No. 27 of 2016 was filed in Artha Rin Adalat. He affirmed that the documents were seized in his presence.

P.W. 6 Shailendra Nath Pal is the Assistant General Manager(former) of Agrani Bank Limited. He stated that between 03.08.2007 to 14.04.2009 he was posted at Agrani Bank Limited. On 20.03.2000 following the instruction of Head Office, he conducted an audit of the Agrani Bank Limited, Noapara Bazaar Branch from 23.02.2000 to 18.05.2000 along with 3 other officers. During the audit, he visited the pledge godown of Ms. Shahjahan Traders and found shortage of MOP fertilizer which has been mentioned in the report. During cross-examination on behalf of the accused Shahjahan Ali, he affirmed that the bank is the custodian of the goods as per the sanction letter. He did not count each bag. He denied the suggestion that there was no shortage of goods.

P.W. 7 Md. Azad Sobahan is the Assistant General Manager, Agrani Bank, Khulna Circle, Khulna. He stated that on 07.02.2000, he inspected the pledge godown of M/s. Shahjahan Traders and found shortage of 32,296 bags of MOP fertilizer equivalent to Tk. 1,29,18,400. There was a shortage of 27069 bags of Urea fertilizer valued at Tk. 70,58,630, total value of Tk. 1,99,770.30. A four-member audit team conducted the audit. He proved the audit report as exhibit-6 and his signature as exhibit-6/1(photocopy). The original audit report is available with the records of Special Case No. 10 of 2012. During cross-examination, he stated that he deposed in Special Case No. 10 of 2012 relating to the same fertilizer. He affirmed that before the audit, notice was not served upon the accused and he did not sign the audit report. He also affirmed that each bag of fertilizer was not counted and by measuring tap, the bags of the fertilizer were counted. He saw the stock

register and the godown register which are not available in court. He denied the suggestion that the audit was not conducted in accordance with law, the report submitted by him was not correct and there was no shortage of fertilizer.

P.W. 8 Md. Azad Hossain Khan is the AGM(retired) of Agrani Bank Limited. He stated that on 07.02.2000 he was posted as Senior Principal Officer. On 07.02.2000 he visited the loan godowns of Agrani Bank, Noapara Branch. He visited the godown of M/s. Shajahan Traders. Md. Amarat was a team member. A four-member team visited and there was a shortage of 32,296 bags of MOP fertilizer valued at Tk. 1,29,18,400 and there was also a shortage of 27,069 bags of Urea fertilizer valued at Tk. 70,58,630. Thereafter, a report was submitted on 27.02.2000. He proved his signature on the report dated 27.02.2000 as exhibit-6/2. During cross-examination, he stated that earlier he deposed in Special Case No. 10 of 2012 relating to the same goods and as per the sanction letter, the bank is the custodian of the imported goods. After payment of the money to the bank based on the release letter, the goods are taken out of the godown. The bank authority handed over the stock report to the team. He affirmed that before the inspection, no notice was given to the accused and based on the stock report they conducted the inspection. As per the report, the audit team inspected the 74 pledge godowns. He denied the suggestion that there was no shortage of goods and submitted the report as he wished.

P.W. 9 Md. Al-Amin is the Managing Director (former) of Rajshahi Sugar Mills. He stated that while he was discharging his duty as Managing Director of Rajshahi Sugar Mills vide memo dated 30.10.2010 a report was submitted regarding the purchase of MOP fertilizer from M/s. Shahjahan Traders. During cross-examination, he affirmed that the report is not available in court. He could not say anything about the content of the report.

P.W. 10 Dipok Kumar Shaha is the Senior Principal Officer(retired) of Agrani Bank Limited, Khulna Circle, Khulna. He stated that he was the Senior Principal Officer of Agrani Bank Limited, Khulna Circle. On 07.02.2000 he inspected the pledge godown of Agrani Bank, Noapara

Branch. He inspected the goods practically and there were four members of the team. At the time of inspection, the required MOP fertilizers were total of 86,946 bags but the team found total 84,650 bags. There was a shortage of 32,296 bags of MOP fertilizer valued at Tk. 1,29,18,400 and 27,069 bags of Urea fertilizer valued at Tk. 70,58,630, total Tk. 1,99,77,030. After inspection, the audit team submitted a report. He proved his signature on the report (photocopy) as exhibit-6/3. The original of the report was submitted in Special Case No. 10 of 2012. During cross-examination, he stated that in Special Case No. 10 of 2012, he deposed regarding the shortage of 32,296 bags of MOP fertilizer. He affirmed that before the release of the goods from the godown, the importer deposits the cash of the sale proceeds of the goods and thereafter the bank issues the DO letter. Nothing is mentioned as regards the counting of each bag of fertilizer of M/s. Shahjahan Traders. He affirmed that the goods were measured by the measuring tape and in the stock register the balance of each day is mentioned. In the report, there is no signature of the accused Shahjahan Mollah and before the audit, no notice was served upon the accused Shahjahan Mollah. He denied the suggestion that he deposed falsely.

P.W. 11 Sunil Kumar Datta was tendered by the prosecution and declined by the defence.

P.W. 12 Abdur Rahman is the Office Assistant of Mobarakgonj Sugar Mills. He stated that on 12.08.2010 he was discharging his duty in the said Sugar Mills. S.M. Sudarshan Mallik was the Manager of the Mobarakgonj Sugar Mill. He had given a report regarding the supply of MOP fertilizer by M/s. Shahjahan Traders from 1998 to 1999 and 2000. He proved the handwriting of the S.M. Sudarshan Mollik on the report (photocopy). During cross-examination, he stated that the original report is not available in Court. The attested copy of the report is available and there is no seal on the photocopy. He had no personal knowledge about the goods.

P.W. 13 Syed Ahmed is the Deputy Director of the Anti-Corruption Commission. He stated that on 21.04.2010 he took up investigation of the case. The informant Ashraful Islam died. He served along with him for which

his signature is known to him. On 19.09.2003 Ovoynagar P.S. Case No. 16 was lodged. He proved the FIR as exhibit-7 and the signature of Ashraful Islam as exhibit-7/1. During the investigation, he stated that he visited the place of occurrence i.e. the Agrani Bank, Bazar Branch and the pledge godown. On 09.06.2010, 06.07.2010 and 07.07.2010 he seized the register relating to LC loan account and pledge account. He collected the report submitted by the audit team. He seized the documents regarding the supply of fertilizer to 13 Sugar Mills. He proved the documents as exhibit-8 and his signature as exhibits-8/1 and 8/2. He seized documents on 09.06.2010 and prepared the seizure list. He proved his signature on the seizure list as exhibit-1/4. On 06.07.2010 at 3.30 pm, he seized the alamats based on the seizure list. He proved his signature as exhibit-2/3. He proved the seizure list as exhibit-9 and his signature as exhibit-9/1. On 07.07.2010 at 10 am he seized the alamats. He proved his signature on the seizure list as exhibit-4/3. During the investigation, he found that accused Shahajahan Mollah opened the Current Account No. 1252 in 1988 with Agrani Bank Limited, Noapara Branch. On 04.10.1998, he filed an application to open the LC to import 7000 metric tons of MOP fertilizer. On 13.12.1998 permission was given to import 7000 metric tons of MOP fertilizer to M/s. Shahjahan Traders.

P.W. 14 Md. Shariful Islam is the AGM, Agrani Bank Ltd, Noapara Branch, Jashore. He stated that on 06.07.2010 at 3.30 Assistant Director Syed Ahmed of BACC seized documents as per presentation of Manager Md. Akhter Hossain which was submitted in Special Case No. 10 of 2012. He produced a photocopy of those documents.

The learned Advocate Mr Abu Hanif appearing on behalf of the appellant submits that a four-member audit team of Agrani Bank inspected the 113 godowns on 07.02.2000 and the said audit team without counting each bag of fertilizer kept in the godown measured the fertilizer by a measuring tap in the absence of the appellant. It is not possible to count the total fertilizer of 113 godowns by a four-member audit team in one day and the audit team did not seize the stock register and the statement of account of the account No. 91005(P) maintained with Agrani Bank Ltd. Noapara Branch, Jashore and without the stock register and the statement of account

as of 07.02.2000, the total shortage of fertilizer cannot be determined. He further submits that none of the purchasers of the fertilizer proved the exhibits-8, 8/1 and 8/2 and the investigating officer P.W. 13 is not legally empowered to prove the exhibits-8, 8/1 and 8/2 which were issued by the purchasers. He also submits that initially in the FIR the informant alleged that the appellant in connivance with the bank officials sold the fertilizer without depositing the sales proceeds in the CC Pledge Account No. 91005(P) but the bank officials who were examined by the prosecution only stated that there was a shortage of total 32,296 bags of fertilizer without exhibiting the statement of account. He finally submits that the appellant is a businessman and before opening the L.C., he also imported fertilizer and sold the same to his customers and the appellant already adjusted the entire loan liability of the bank before pronouncement of judgment. The prosecution failed to prove the charge against the appellant beyond all reasonable doubt. The learned Advocate for the appellant also relied on the decision made in the case of Sahabuddin Alam (Md.) vs. State and others reported in 74 DLR 170, the case of Nimai Chandra Bishwas vs. Sonali Bank Ltd reported in 22 BLC(AD) 2017 page 195 and the case of The State vs. Md. Faiz Ullah reported in 72 DLR 187.

The learned Advocate Mr Md. ASM Kamal Amroohi Chowdhury appearing on behalf of respondent No. 2 submits that P.Ws. 6, 7, 8 and 10 stated that at the time of the audit, the audit team found total shortage of 32,296 bags of MOP fertilizer in the godown and the prosecution proved the inspection report as exhibit-6 to prove the shortage. The Investigating Officer P.W. 13 stated that the appellant made a duplicate key of the godown and sold the fertilizer without permission of the bank and also without depositing the sales proceeds against the LC. The prosecution witnesses proved the charge against the appellant beyond all reasonable doubt. Therefore, he prayed for the dismissal of the appeal.

I have considered the submission of the learned Advocate for the appellant and the learned Advocate engaged on behalf of respondent No. 2, perused the evidence, impugned judgment and order passed by the trial Court and the records.

On perusal of the records, it appears that on 07.02.2000 a four-member inspection team inspected 74 godowns although in the inspection report (exhibit-6) it has been mentioned that the said inspection team inspected 113 godowns of Jashore.

In the inspection report dated 27.02.2000 (exhibit-6) it has been mentioned that;

“শাখা কর্তৃক দাখিলকৃত ০৭.০২.২০০০ ইং তারিখের বিবরণীতে দেখা যায় যে, উল্লেখিত তারিখে শাখায় সর্বমোট ৩৪টি ঋণ গ্রহীতাগনের সিসি প্লোজ ও হাইপো ঋণ হিসাবের বিপরীতে মোট দায়স্থিতির পরিমান ছিল ৪২৯৪.২১ লক্ষ টাকা। ইংরেজী ০৭.০২.২০০০ ইং তারিখে মোট ৭৪ টি প্লোজ গুদামে প্লোজকৃত মালের পরিমান ছিল ২৭,৯৫,৪০,০০০ টাকা। (০৭.০২.২০০০) তারিখের বিবরণী ও ষ্টক রিপোর্ট সংযোক্ত। গুদামগুলি সরেজমিনে পরিদর্শন কালে দেখা যায় যে, অধিকাংশ গুদামের ক্ষেত্রে প্লোজকৃত মালামাল গননাযোগ্য অবস্থায় খামাল (র‍্যাকিং) করা নাই। তবে ফিতার সাহায্যে খামাল পরিমাপ করা হয় এবং প্লোজকৃত সারের বন্সার সংখ্যা নিরূপন করা সম্ভব হয়।”

On perusal of the evidence of investigating officer P.W. 13 Syed Ahmed, it reveals that an audit team audited the godowns of the appellant on 22.03.2000 and found a shortage of fertilizer in the godown but the prosecution did not prove the said audit report. It further reveals that Ashraful Islam, Inspector of the Anti-Corruption Bureau is the informant and during the trial, he died and the investigating officer was known to him. The investigating officer P.W. 13 proved the FIR as exhibit 7. Only the informant is competent to give evidence as regards the content of the FIR but the investigating officer P.W. 13 has given detailed evidence as regards the content of the FIR. The prosecution did not prove the audit report dated 22.03.2000 but the investigating officer most illegally deposed as regards the content of the said audit report. The trial court illegally allowed P.W. 13 to depose as regards the content of the FIR (exhibit-7) and the audit report dated 22.03.2000 submitted by the audit team of Agrani Bank Limited. Therefore, the evidence of P.W. 13 as regards the content of the FIR and the said audit report is excluded from consideration.

The stock register and the statement of account as of 07.02.2000 are indispensable to arrive at a conclusion as regards the shortage of fertilizer. The prosecution failed to prove the stock register and the statement of an account being No. 91005(P) of the appellant maintained with Agrani Bank Limited, Noapara Branch, Jashore to prove the total deposit made by the appellant as of 07.02.2000 and the stock.

In the inspection report dated 27.02.2000(exhibit-6) it is mentioned that the goods were not kept in a position to count each bag of fertilizer and the inspection team counted the bags of fertilizer with a measuring tape which is also corroborated by P.Ws. 7 and 10. To arrive at a correct conclusion as regards the shortage of fertilizer each bag of fertilizer kept in the godown is required to be counted and the counting total bags of fertilizer kept in the godown by a measuring tape is a wrong method of counting to determine the shortage of fertilizer. The method applied by the inspection team to count the total shortage of fertilizer kept in the godown is not acceptable. Therefore, I am of the view that the inspection team failed to determine the total shortage of the fertilizer kept in the godown of the bank.

In the FIR, it has been alleged that the appellant in connivance with the Bank officials without prior permission sold the fertilizer without depositing the sales proceeds in the CC Pledge Account No. 91005(P) maintained with Agrani Bank Limited, Noapara Branch, Jashore. P.Ws. 6, 7, 8 and 10 are bank officials and they stated that there is a shortage of 32,296 bags of fertilizer in the godown. No statement was made by P.Ws. 6, 7, 8 and 10 that the appellant in connivance with the bank officials sold the fertilizer without depositing the sales proceeds in the loan account of the appellant.

It is a settled proposition that the bank is the custodian of the pledge goods kept in the godown of the bank. The godown keeper and all staff of the godown are salaried persons of the bank. The trial court acquitted the godown keeper Md. Monurannl Pal and Senior Officer Md. Mokaddesh Biswas(dismissed) from the charge and only convicted the appellant. In the absence of the stock register and the statement of account as of 07.02.2000, it cannot be held that there was a shortage of 32,296 bags of fertilizer as of

07.02.2000. Counting the total bags of fertilizer by measuring the tap by the inspection team to determine the total shortage of fertilizer is defective. Therefore, there is doubt about the total shortage of 32,296 bags of fertilizer as of 07.02.2000. It is found that in the meantime the appellant paid the entire loan liability of the bank.

In view of the above evidence, findings, discussion, observation and proposition, I am of the view that the prosecution failed to prove the charge against the appellant beyond all reasonable doubt by adducing legal evidence.

I find merit in the appeal.

In the result, the appeal is allowed.

The impugned judgment and order of conviction and sentence passed by the trial Court is hereby set aside.

Send down the lower Court record at once.

(Md. Shohrowardi,J)